

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2025-3777, 2025-3927, and 2025-4757

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE AS A
LICENSED PROFESSIONAL COUNSELOR OF STEPHEN PAUL GARDEA, LICENSE NO. LPC.0019700,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (“Board”) and Stephen Paul Gardea (“Respondent”), as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order (“Order”).

2. Respondent was licensed to practice as a licensed professional counselor within the State of Colorado on or about August 16, 2023, under license number LPC.0019700, and was so licensed at all times relevant to case numbers 2025-3777, 2025-3927, and 2025-4757. As of September 11, 2025, Respondent’s license to practice as a licensed professional counselor is restricted pursuant to an Interim Cessation of Practice Agreement.

3. This Order is a full and final resolution of case numbers 2025-3777, 2025-3927, and 2025-4757. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, before this or any other adjudicative or regulatory body, as of the effective date of this Order.

4. Based on its review of case numbers 2025-3777, 2025-3927, and 2025-4757, the Board alleges that Respondent violated section 12-245-224(1)(g)(I), (h), (i), and (l), C.R.S. when:

- (a) Respondent practiced beyond his scope when providing addiction services to a client;
- (b) Respondent failed to refer his client to an appropriate practitioner when the client’s problem was beyond his training, experience, and competence;
- (c) Respondent maintained a relationship with his client that was likely to impair his professional judgment or increase the risk of client exploitation;
- (d) Respondent invited a client to live in his home and the client moved in;
- (e) Respondent gave his client his own car to drive;
- (f) Respondent entered his client’s home several times;
- (g) Respondent made inappropriate physical contact with his client; and

(h) Respondent inappropriately testified in support of his client in a domestic relations case.

5. Respondent denies the Board's allegations in paragraph 4 above.

6. The Board is authorized by sections 12-20-404 and 12-245-226, C.R.S., to order appropriate disciplinary sanctions as set forth in this Order.

7. The Board is authorized to suspend, revoke, place a license on probationary status, or otherwise discipline any licensee as provided in sections 12-20-404, 12-245-224 and 12-245-226, C.R.S. for any of the following:

12-245-224. Prohibited activities - related provisions - definition. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if the person:

(g)(l) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline.

(h) Has performed services outside of the person's area of training, experience, or competence;

(i) Has maintained relationships with clients that are likely to impair the person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives;

(l) Has failed to refer a client to an appropriate practitioner when the problem of the client is beyond the person's training, experience, or competence;

PERMANENT RELINQUISHMENT

8. In lieu of proceeding to a disciplinary hearing, Respondent hereby relinquishes his license to practice as a licensed professional counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept such relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of section 12-20-404(3), C.R.S. Respondent agrees to not apply for licensure with the State Board of Licensed Professional Counselor Examiners in the State of Colorado at any time in the future.

TERMS AND CONDITIONS

9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-

403 and 12-270-114, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

10. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

11. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized representative.

12. This Order entered pursuant to this Stipulation and Final Agency Order shall constitute an order of the Board for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, and 12-245-224, C.R.S.

13. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

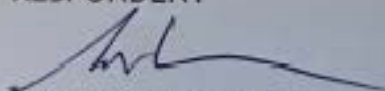
14. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

15. This Order shall be admissible as evidence at any hearing held before the Board.

16. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

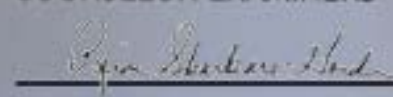
RESPONDENT


Stephen P Gardea

STEPHEN PAUL GARDEA
License no. LPC.0019700

AGREED TO AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


REINA SBARBARO-GORDON
Program Director

Effective this 11th day of December 2025